

25STC23986 25STC23986

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Case Number: 25STC23986 Hearing Date: June 26, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA, et al.

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14, et al.

..

et al.

TERRENCE MOORE, an individual; SARAH MOORE, an individual; et al.

et al.

Plaintiffs, et al.

v. et al.

et al.

ARKEMA, INC., et al.

et al.

Defendants.

Case No. 25STCV23986

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Hearing Date: June 26, 2026

Time:

9:00 a.m.

٢ [TENTATIVE] ORDER

RE:٢

DEFENDANT SANOFI-AVENTIS U.S. LLC'S MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On August 12, 2025,
Plaintiffs Terrence and Sarah Moore filed their
complaint for personal injury alleging Mr. Moore developed
mesothelioma from direct exposure to asbestos
contaminated consumer talc products. As against Sanofi-Aventis,
Plaintiffs allege that Mr. Moore was exposed to asbestos via its asbestos-containing
Gold Bond and Desenex products she used between 1980 and 2010. (Compl. at ¶7.)

On

April 2, 2026, Defendant Sanofi-Aventis U.S., LLC ("Sanofi-Aventis" or
"Defendant") moved for summary judgment or adjudication on the grounds that it
has no connection to the Gold Bond or Desenex products that Plaintiffs
attribute to it.

On

June 5, 2026, Plaintiffs opposed, arguing Sanofi-Aventis's motion relies on
affidavits that fail to comply with Code of Civil Procedure section 2015.5 and
lack foundation. Plaintiffs also argue that the motion is procedurally improper
because it does not dispose of an entire cause of action.

On June 15, 2026, Sanofi-Aventis
replied, arguing its supporting affidavits are admissible because they comply
with the requirements of Code of Civil Procedure section 2015.5 and have

foundation. Sanofi-Aventis also argues that Plaintiffs' procedural arguments fail because the motion is directed at all of Plaintiffs' claims against it.

Sanofi-Aventis failed to meet its burden to show that no triable issues of material fact remain over whether Mr. Moore was exposed to an asbestos-containing product for which it was responsible. The facts stated in the affidavits Sanofi-Aventis submitted in support of its motion are inadmissible for lack of personal knowledge. The burden does not shift to Plaintiffs. For the same reasons, Sanofi-Aventis's motion for summary adjudication is denied.

II.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Id.* at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1440.)

B. Analysis

Sanofi-Aventis moves for summary

judgment on the grounds that has no connection to any Gold Bond or Desenex products. Sanofi-Aventis relies exclusively on two affidavits by Sanofi-Aventis's contract corporate secretary, Stacy Apgar, to support this contention. (Degen Decl., Exhs. B-C.) Plaintiffs argue in opposition that the affidavits are inadmissible because they fail to comply with Code of Civil Procedure section 2015.5[1] and because the affidavits lack foundation and personal knowledge.

In reply, Sanofi-Aventis argues that the affidavits are properly made "on personal knowledge" and "sets forth admissible facts, show[ing] the affiant is competent to testify to the matters stated therein." (Reply at p.4.)

Ms. Apgar's affidavits state that Sanofi Aventis's three US subsidiaries are Gold Bond Co LLC ("GBC"), Sanofi-Aventis U.S., LLC ("SAUL"), and Sanofi U.S. Services, Inc. ("SUSI"). (Degen Decl., Exh. B at ¶3, Exh. C at ¶3.) Ms. Apgar served as the assistant secretary of SAUL and SUSI. (Id.) Ms. Apgar was responsible for maintaining the corporate books and records for SAUL and SUSI. (Id., Exh. B at ¶2, Exh. C at ¶2.) Ms. Apgar testifies that SAUL and SUSI have never owned the Gold Bond or Desenex brands. (Id., Exh. B at ¶6, Exh. C at ¶8.) The facts stated in the affidavits are based on Ms. Apgar's personal knowledge and her review of records kept in the normal course of business by Sanofi-Aventis. (Id.)

Unless a witness is giving expert testimony, the "testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter. Against the objection of a party, such personal knowledge must be shown before the witness may testify concerning the matter. (Evid. Code, § 702, subd. (a).) Corporate representatives are also subject to this personal knowledge rule and are limited to testimony reflecting their personal knowledge. (LAOSD Asbestos Cases (Ramirez v. Avon Products) 2023) 87 Cal.App.5th 939 ("Ramirez").) For example, in Ramirez, a corporate representative's testimony was inadmissible because the events described took place before the representative began working for the corporation and the representative failed to identify a source for her information. (Id. at p.951.) Even if the representative was "channeling" information from other individuals with personal knowledge, the trial court had no way of evaluating the reliability of the representative's information obtained from these individuals. (Id.) The documents attached to the

representative's declaration likewise failed to cure the defects with the representative's declaration because the documents were themselves inadmissible hearsay. (Id.)

Here, Ms. Apgar fails to identify the source of her information that SAUL and SUSI have never owned the Gold Bond or Desenex brands. Additionally, there is no evidence of when Ms. Apgar began working for Sanofi-Aventis. There is thus no evidence that Ms. Apgar has the personal knowledge to testify that SAUL and SUSI did not own these brands during the alleged exposure period between 1980 and 2010. Although Ms. Apgar states her testimony is based in part on her review of corporate records, the documents she reviewed are not included with the moving papers. Like the evidence described in Ramirez, there is no way for the court here to verify the reliability of Ms. Apgar's information. Accordingly, Plaintiffs' objections for lack of foundation and personal knowledge are sustained. There being no other evidence of whether Sanofi-Aventis is liable for Gold Bond or Desenex products, Sanofi-Aventis fails to meet its burden on summary judgment. The burden does not shift to Plaintiffs. Sanofi-Aventis's motion for summary judgment is denied. The motion for summary adjudication is denied for the same reasons.

III.

Conclusion

Sanofi-Aventis failed to meet its burden to show that no triable issues of material fact remain over whether Mr. Moore was exposed to an asbestos-containing product for which it was responsible. The facts stated in the affidavits Sanofi-Aventis submitted in support of its motion are inadmissible for lack of personal knowledge. The burden does not shift to Plaintiffs. Sanofi-Aventis's motion for summary adjudication is denied for the same reasons.

Plaintiffs

to give notice.

[1] Plaintiffs

argue that Ms. Apgar's declaration fails to comply with Code of Civil Procedure section 2015.5, which requires declarations supporting a matter to be sworn under penalty of perjury under California law. However, section 2015.5 states where a matter is required or permitted to be supported by "sworn statement,

declaration, verification, certificate, oath, or affidavit,” the matter may be supported by “unsworn statement, declaration, verification, or certificate” sworn under penalty of perjury. In other words, Code of Civil Procedure section 2015.5 applies to unsworn statements, declarations, verifications, or certificates submitted in lieu of affidavits. Here, Sanofi-Aventis submitted affidavits in support of its motion. Accordingly, section 2015.5 does not exclude Ms. Apgar’s affidavits.